

Court No. - 21

Case :- WRIT - C No. - 10344 of 2023

Petitioner :- Hemant Yadav

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Pradeep Kumar Yadav

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

On request made on behalf of counsel for the petitioner, matter is adjourned.

List as fresh on 4 April 2023.

Order Date :- 29.3.2023

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(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Prashant Kumar, J.

The petitioner has challenged the demand notice dated 03.03.2022 issued by respondent no. 3 for recovery of Rs. 6,60,765/- from the petitioner in a case of theft of electricity.

Learned counsel appearing on behalf of the respondent-Electricity Department Shri Ashutosh Dwivedi holding brief of Shri Baleshwar Chaturvedi states that the impugned demand notice has been withdrawn and that the respondents have issued notice to the petitioner fixing 19.04.2023 as date for hearing and thereafter, a fresh order will be passed. A copy of the notice fixing date for hearing has been handed over to the learned counsel for the petitioner in Court.

Accordingly, the petition is disposed of with liberty to the respondents to proceed in the matter strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 4.4.2023

Rama Kant